SOVEREIGNTY

AUSTIN, BODIN, LASKI, KAUTILYA -> CONCEPT AND TAXONOMY -> FIVE CLASSICAL ATTRIBUTES -> BODIN -> AUSTIN AND ITS CRITICS -> KELSEN AND HART -> LASKI -> KAUTILYA -> GLOBALISATION -> SYNTHESIS

Follow the numbered rail from Stage 00 to Stage 16, then the subordinate optional card. Each stage uses the internal grammar its content demands - question columns, comparison matrices, numbered chains, ladders and paired panels. The grey card is optional enrichment and never repairs a gap in the core.

● PRIMARY CORE FLOW
● SUBORDINATE EXTRA
● APPROVAL / REVIEW

Approval: FALSE - pending user review - Topic 02 repaired in place; all other topics unchanged

00

STAGE 00 THE PRINTED CLAUSE, FINAL AUTHORITY AND THE THREE QUESTIONS

SUPREME, FINAL, AUTHORITATIVE
NOT MERE FORCE
NOT THE GOVERNMENT OF THE DAY
ORDINARY vs HIGHEST AUTHORITY
FOUR PRINTED THINKERS ONLY

OFFICIAL OWNER -> Sovereignty : Austin, Bodin, Laski, Kautilya.

WHERE?
- Who or what holds final authority?
- Bodin: the commonwealth's law-giving power.
- Austin: a determinate human superior.
- Laski: nowhere single. Kautilya: the ruler in a seven-limbed state.

HOW?
- Is final authority one and undivided, or shared?
- Monists: indivisible; shared finality means insoluble conflict.
- Laski: authority must be divided and shared.
- Kautilya: organically coordinated, not simply indivisible.

HOW FAR?
- What may limit the final authority?
- Higher law, morality, associations, welfare duty, other states.
- Bodin: divine law, natural law, leges imperii.
- Austin: no legal limit inside the order.

FIVE PRESSURE POINTS
- Liberty: finality can crush the protected sphere.
- Plurality: churches, unions and universities command loyalty.
- Federalism: competence is constitutionally split.
- Morality: a legally valid command may be monstrous.
- Interdependence: treaty and market pressure narrow choice.

OWNERSHIP FENCE
- Contract, rights, obligation, Dworkin -> Individual and State.
- Forms of democracy -> Forms of Government.
- Equality, justice, liberty -> Social and Political Ideals.
- Institutions and disputes -> International Relations.

BRIDGES ADMITTED
- Hobbes: the absolutist foil the owner itself names.
- Rousseau: the popular-sovereignty counterpoint to Austin.
- Kelsen and Hart: the two internal repairs of Austin.
- Corpus share: 11 of 112 parts, 2018-2025.

MECHANISM / VERDICT — **Sovereignty is a claim about FINALITY, not about force: the bandit is excluded by definition, the constitutionally limited legislature is not.**

ANSWER-GRABBING LINE — **The paper never asks whether an order needs a last word; it asks whether that last word must be single, legally unlimited and morally self-justifying.**

01

STAGE 01 THE TAXONOMY - FIX THE AXIS BEFORE GRADING ANY THINKER

INTERNAL / EXTERNAL
LEGAL / POLITICAL
DE JURE / DE FACTO
TITULAR / ACTUAL
POPULAR / NATIONAL
MONIST / PLURALIST

CONTROLLING MOVE -> most objections to monism are POLITICAL answers offered against a LEGAL thesis

PAIR	FIRST TERM	SECOND TERM	DIAGNOSTIC USE
INTERNAL / EXTERNAL	supremacy over persons and associations inside the state	independence from outside control in the society of states	globalisation; Kautilya's circle of states
LEGAL / POLITICAL	the authority the law recognises as competent to make law	the real power that can compel or shape the law-maker	Austin's angle against Laski's angle
DE JURE / DE FACTO	lawful in title and formal right	actually obeyed in practice, whatever the title	revolution, coups, unstable orders
TITULAR / ACTUAL	vested formally in an office or symbol	exercised by those who really govern	constitutional monarchy; cabinet rule
POPULAR / NATIONAL	the people in corporate capacity as source of authority	a national community's claim to govern itself	the democracy objection to Austin

THE ROUSSEAU BRIDGE
- Sovereignty lies in the general will - a claim about the COMMON GOOD.
- Not the numerical sum of private preferences.
- Sovereignty stays with the people; government is only their agent.

WHY IT DESTROYS AUSTIN
- Austin needs a DETERMINATE human superior.
- 'The people' are indeterminate, changing, institutionally mediated.
- Either the sovereign is not the people, or it is not determinate.

CONTROL LINE
- Popular sovereignty answers 'from whom does authority arise?'
- National sovereignty answers 'which people may govern itself?'
- Neither makes any majority decision morally sovereign.

MECHANISM / VERDICT — **Austin's habitual obedience gives his sovereign a DE FACTO edge; Bodin's perpetuity attaches to the OFFICE - the two monists already diverge before any critic arrives.**

ANSWER-GRABBING LINE — **Name the dimension the stem tests inside the first three lines, and the rest of the answer has a spine instead of a mood.**

02

STAGE 02 THE FIVE CLASSICAL ATTRIBUTES AND THE CLAUSES THAT SAVE THEM

ABSOLUTENESS
PERMANENCE
UNIVERSALITY
INALIENABILITY
INDIVISIBILITY

PLACEMENT -> Bodin supplies ABSOLUTE + PERPETUAL; Austin supplies the DETERMINATE SUPERIOR; the five-part list is a CONSOLIDATION

ATTRIBUTE	EXAM-SAFE MEANING	REQUIRED QUALIFICATION	WHAT FAILS WITHOUT IT
ABSOLUTENESS	no superior human law-maker commands it within the order	not moral infallibility, not practical omnipotence	the answer is refuted by the first tyrant named
PERMANENCE	governments change; sovereignty continues with the state	continuity while independent, not literal eternity	succession and persistence become unexplained
UNIVERSALITY	reaches persons and associations within the territory	recognised immunities and autonomous spheres may exist	any statutory immunity refutes the claim
INALIENABILITY	cannot be given away without ceasing to be sovereign	delegation, devolution and treaty are not alienation	every treaty looks like a surrender
INDIVISIBILITY	the classical theory requires one final legal source	competences may still be distributed	the first federation defeats the doctrine

BODIN'S CONTRIBUTION
- The defining pair: ABSOLUTE and PERPETUAL power of a commonwealth.
- Absolute denies a superior LAW-MAKER, not a superior NORM.
- Perpetual detaches authority from the office-holder.

AUSTIN'S SHARPENING
- Determinate, absolute, indivisible, illimitable, inalienable.
- Each closes a gap in the chain of legal validity.
- Stricter than political reality - a LOGICAL feature of the scheme.

CONTINUITY BRIDGE
- Habit cannot explain the new sovereign's first command.
- Nor the persistence of a statute made centuries ago.
- Kelsen and Hart repair this WITHOUT a personal sovereign.

MECHANISM / VERDICT — **The qualification column is the doctrine: qualified, the list survives federal division and treaty commitment; unqualified, it is refuted by a first-year example.**

ANSWER-GRABBING LINE — **Sovereignty is absolute without being infallible, permanent without being eternal, universal without abolishing immunity, inalienable although delegable, indivisible in source although divisible in competence.**

03

STAGE 03 BODIN I - CIVIL WAR, THE DEFINITION AND THE TWO ADJECTIVES

ABSOLUTE AND PERPETUAL
POWER OF A COMMONWEALTH
MAKE AND UNMAKE LAW
OFFICE, NOT MAGISTRATE
UNITY ABOVE FACTION

SIXTEENTH-CENTURY FRANCE -> rival churches, estates and feudal powers each claim finality -> no procedure for closure

1 THE CRISIS
Religious civil war; the commonwealth has no way of ending a dispute.

2 THE MOVE
Theorise a stable centre of command able to keep order above faction.

3 ABSOLUTE
Subject to no human superior within the commonwealth.

4 PERPETUAL
Attached to the office, not to a temporary magistrate or delegate.

5 THE MARK
Power to make and unmake law for all subjects without a superior's consent.

6 THE PRESUPPOSITION
Law needs a source not itself legally derivative from another earthly power.

WHAT PERPETUITY ACHIEVES
- A power that dies with its holder is a personal ascendancy.
- A power that survives its holder is an INSTITUTION.
- Only an institution supplies continuous closure - this makes the STATE.

WHAT ABSOLUTE DOES NOT MEAN
- Not arbitrary in every sense.
- It means supreme in the hierarchy of POSITIVE law.
- Session 04 supplies the three limits that complete the doctrine.

EXAMINER USE
- 2020 Q1(d): explain the importance of Bodin's theory.
- 2022 Q2(a): the arguments for absolute, perpetual and undivided.
- Two lines of civil-war context earn marks; two paragraphs do not.

MECHANISM / VERDICT — **Bodin's importance is not that he made rulers stronger but that he made authority IMPERSONAL - which is why republics later used his vocabulary.**

ANSWER-GRABBING LINE — **Absolute removes the human superior; perpetual creates the office - and it is the second, not the first, that turns a strong ruler into a state.**

04

STAGE 04 BODIN II - INDIVISIBILITY, THE THREE LIMITS AND THE VERDICT

INDIVISIBLE TITLE
DIVISIBLE FUNCTIONS
DIVINE LAW
NATURAL LAW
LEGES IMPERII
LEGIBUS SOLUTUS

TWO FINAL AUTHORITIES IN ONE COMMONWEALTH -> conflict becomes insoluble -> the civil disorder Bodin set out to end

ABOVE ORDINARY POSITIVE LAW
The sovereign makes it, and so cannot be subject to it without circularity.

BOUND BY DIVINE LAW
The sovereign cannot validly command what offends divine order.

BOUND BY NATURAL LAW
Justice and basic right reason remain normative limits.

BOUND BY THE LEGES IMPERII
Fundamental constitutive laws of the realm structure the sovereign office.

WORKED CASE
Arbitrary confiscation of property is discussed as incompatible with his own framework.

PERMITTED / FORBIDDEN
- PERMITTED: division of governmental FUNCTIONS.
- Advisory estates and subordinate courts may exist.
- FORBIDDEN: division of sovereign TITLE.

OBJECTION AND REPLY
- Objection: constitutional government proves power can be divided.
- Reply: administrative distribution is not shared law-making finality.
- Critics answer that federal systems weaken the rigid thesis.

THE HONEST RESIDUAL
- The sovereign is also the judge of what the higher limits require.
- No institution is empowered to enforce them against him.
- Conceptually real, practically thin.

MECHANISM / VERDICT — **Bodin is LEGIBUS SOLUTUS of ordinary positive law only - which is exactly why he founds the modern doctrine without being its most extreme exponent.**

ANSWER-GRABBING LINE — **Historically foundational, normatively problematic: Bodin makes the modern state possible and modern constitutional protection necessary.**

05

STAGE 05 AUSTIN I - THE ANALYTICAL PROJECT AND THE DETERMINATE SUPERIOR

ANALYTICAL JURISPRUDENCE
IS vs OUGHT
DETERMINATE HUMAN SUPERIOR
HABITUAL OBEDIENCE
OBEYS NO ONE

NOT THE STATE IN THE ABSTRACT -> a DETERMINATE PERSON OR BODY; a legislature or monarch fits better than diffuse democratic opinion

1 THE PROJECT
Define law and sovereignty with the precision of a formal definition.

2 THE SEPARATION
What law IS is separated from what law OUGHT to be.

3 DETERMINATE
The sovereign must be identifiable, not vague or mystical.

4 HABITUALLY OBEYED
By the bulk of a given society - not occasional force alone.

5 OBEYS NO ONE
The chain of legal validity terminates; nothing lies above it.

6 THE PAYOFF
Sovereignty becomes the juristic foundation of legal validity.

WHERE IT WORKS
- Relatively centralised legal orders with a visible law-maker.
- Penal law, where command and sanction are explicit.
- Any question about the FORM of legal authority.

WHERE IT FAILS
- Constitutional, federal and democratic systems.
- Enabling, permissive and procedural rules.
- Any question about the political reality behind the law-maker.

THE STANDING CORRECTION
- Austin's sovereign is a person or body, never 'the state'.
- Trap 1 of the owner's list, and the fastest lost mark.
- Every serious criticism attacks the word DETERMINATE.

MECHANISM / VERDICT — **Because moral legitimacy is deliberately excluded from the definition, the theory can certify a command as valid law while remaining silent on whether it deserves obedience.**

ANSWER-GRABBING LINE — **Austin's sovereign is a determinate person or body, not the state in the abstract - and every serious criticism of him is an attack on that one word.**

06

STAGE 06 AUSTIN II - COMMAND, SANCTION AND WHY THE FIVE ATTRIBUTES ARE FORCED

COMMAND + SANCTION
SPECIES OF IMPERATIVE
D-A-I-I-I
POWER-CONFERRING RULES
NULLITY IS NOT A SANCTION

THE CHAIN OF VALIDITY MUST TERMINATE -> each attribute exists to close a gap, not to describe an actual state

ATTRIBUTE	WHAT IT ASSERTS	THE GAP IT CLOSES
DETERMINATE	the sovereign must be identifiable	without it the origin of validity is unlocatable
ABSOLUTE	no legal limits bind the sovereign from above	without it a superior law-maker exists above it
INDIVISIBLE	final authority cannot be partitioned	without it two rival origins conflict with no resolution
ILLIMITABLE	no superior legal authority restricts it	without it validity is pushed to a further source
INALIENABLE	cannot be transferred and remain sovereignty	without it finality is transferable and so not final

THE FORMULA
- COMMAND: an expression of desire by a superior.
- SANCTION: the evil attached to non-compliance.
- Law is a species of imperative inside superiority and obedience.

BEST FIT / WORST FIT
- BEST: penal law, where both halves are visible.
- WORST: rules for a valid will, contract or marriage.
- Those confer FACILITIES; they order nobody.

THE INTERNAL DEFECT
- A defective will is not punished - it is simply void.
- Nullity is the absence of legal effect, not an evil imposed.
- This is the doorway to Kelsen and Hart.

MECHANISM / VERDICT — **Empirical counter-examples show that no state matches the scheme; only the internal objection from power-conferring rules attacks the DEFINITION and forces reconstruction.**

ANSWER-GRABBING LINE — **The five attributes are entailments of the command theory, not observations about states - which is why refuting them empirically leaves the scheme standing and refuting them internally does not.**

07

STAGE 07 AUSTIN III - THREE STRUCTURAL CRITICISMS AND ONE RELOCATION PATTERN

FEDERALISM
INTERNATIONAL LAW
CUSTOMARY LAW
TACIT ADOPTION
SHIFTS, NOT SOLVES

ONE OBJECTION APPLIED THREE TIMES -> law is found where Austin's determinate superior is not

CRITICISM	WHAT IT ATTACKS	AUSTINIAN RELOCATION	THE COST
FEDERALISM	indivisibility - competence is constitutionally distributed	the constitution-making authority is sovereign	the constitution may itself embody shared or entrenched power
INTERNATIONAL LAW	the scope of the word 'law' - treaty and custom bind	it is not truly law; there is no world sovereign	conceptual purity preserved, explanatory reach lost
CUSTOMARY LAW	the direction of authority - practice precedes command	customs are tacitly adopted by the sovereign	artificial: recognition and obedience precede enactment

MAINE'S COUNTER-EXAMPLE
- Ranjit Singh: authority may be personal, unstable, socially embedded.
- Austinian reply: exceptional cases do not defeat a general theory.
- Counter: the mismatch is wider than any one case.

WHAT THE PATTERN SHOWS
- Each reply relocates the sovereign somewhere else.
- Each relocation costs the determinacy the theory needed.
- The criterion of validity cannot be a PERSON.

OWNERSHIP CONTROL
- The positive theory of international law belongs elsewhere.
- Route it to International Relations; do not develop it here.
- Use the mechanisms analytically and generically.

MECHANISM / VERDICT — **On critically-examine stems the objection-reply-residual layer IS the answer; a bare list of five criticisms scores as description.**

ANSWER-GRABBING LINE — **The three criticisms do not show that legal validity needs no ultimate criterion; they show that the criterion cannot be a person - which is exactly what Kelsen and Hart conclude while remaining positivists.**

08

STAGE 08 AUSTIN IV - DEMOCRACY, THE TWO-LEVEL VERDICT AND THE JURISDICTION CONTROL

YES IN LEGAL FORM
NO IN CONSTITUTIONAL SUBSTANCE
DERIVATIVE, REVISABLE, ANSWERABLE
ARTICLE 368
BASIC STRUCTURE, 1973

PARLIAMENTARY SOVEREIGNTY IS JURISDICTION-SPECIFIC -> it is not a synonym for every parliamentary form of government

UNITED KINGDOM
- Parliament is the supreme legal authority and may make or unmake law.
- One Parliament cannot entrench ordinary law against a future Parliament.
- Courts generally cannot overrule primary legislation.
- A strong modern approximation to legal sovereignty, politically qualified.

INDIA
- The written Constitution is supreme.
- Parliament exercises constitutionally conferred ordinary and constituent powers.
- Judicial review enforces constitutional limits.
- Kesavananda Bharati (Supreme Court judgment, 1973) limits the amending power.

THE TWO-LEVEL VERDICT
- YES, narrowly: a law-making body can always be named.
- NO, deeply: accountability, rights and limitation undermine absoluteness.
- Say at which level each verdict holds - that is the structural mark.

THE SHARPEST FORM
- 'The people' are indeterminate, changing, institutionally mediated.
- Either the sovereign is not the people, or it is not determinate.
- Austin cannot keep both.

DO NOT OVERCLAIM
- The UK order is not legally unconstrained in every practical sense.
- India's judiciary is not sovereign because it reviews legislation.
- A judgment is a dated judicial decision, never philosophical proof.

MECHANISM / VERDICT — **Democracy makes final authority derivative, revisable and morally constrained, whereas Austin conceptualises it as a legally unlimited superior.**

ANSWER-GRABBING LINE — **The function of final legal authority survives in a democracy; Austin's account of it does not.**

09

STAGE 09 KELSEN - THE HIERARCHY OF NORMS AND THE PRESUPPOSED BASIC NORM

HIERARCHY OF NORMS
GRUNDNORM
IS DOES NOT YIELD OUGHT
PURITY OF LEGAL SCIENCE
1945 - NEVER 1961

THREE PROBLEMS AUSTIN CANNOT SOLVE -> succession | persistence | power-conferring rules

BASIC NORM (GRUNDNORM)
Presupposed, not enacted: the condition of reading the chain as valid law at all.

CONSTITUTION
Valid because it is presupposed to be valid; it authorises the statute.

STATUTE
Valid because the constitution authorises its enactment.

ADMINISTRATIVE ORDER
Valid because a statute authorises it.

THE CONSEQUENCE
Sovereignty becomes an attribute of the NORMATIVE ORDER, not of a person.

THE FIVE-STEP ARGUMENT
- 1 validity cannot derive from a fact; 2 so it derives from a further norm.
- 3 infinite regress would leave nothing valid.
- 4 the chain terminates in a presupposed norm.
- 5 law is a self-referring hierarchy, distinct from morality and power.

OBJECTIONS AND REPLIES
- Objection: the Grundnorm is a fiction doing Austin's work.
- Reply: a transcendental-logical condition, not a fact; still positivist.
- Objection: revolution has no authorising norm.
- Reply: a new basic norm is presupposed once the order is effective.

THE RESIDUAL TO CONCEDE
- Efficacy is a CONDITION of validity, never its SOURCE.
- Critics answer that this readmits the fact of power.
- Concede it; do not argue it away.

MECHANISM / VERDICT — **Kelsen does not limit the sovereign; he DISSOLVES him - supremacy becomes the highest norm-creating competence of the order.**

ANSWER-GRABBING LINE — **General Theory of Law and State, first English edition 1945. Writing 1961 for Kelsen is the single most punished factual error in this clause.**

10

STAGE 10 HART - PRIMARY AND SECONDARY RULES, AND THE RULE OF RECOGNITION

PRIMARY RULES
RULE OF RECOGNITION
RULES OF CHANGE
RULES OF ADJUDICATION
INTERNAL POINT OF VIEW
1961

THE GUNMAN SITUATION WRIT LARGE -> being OBLIGED is not the same as HAVING AN OBLIGATION

DEFECT OF PRIMARY RULES ALONE	SECONDARY RULE THAT CURES IT	WHAT IT ANSWERS
UNCERTAINTY about what counts as law	the RULE OF RECOGNITION	which rules are law in this system?
STATIC CHARACTER of custom	RULES OF CHANGE	how is law created, amended and repealed?
INEFFICIENCY of diffuse enforcement	RULES OF ADJUDICATION	who determines breach and remedy, and how?

FOUR STRIKES AGAINST AUSTIN
- Command + sanction ignores power-conferring rules; nullity is no sanction.
- Habit cannot explain succession or the persistence of old statutes.
- The law-maker is itself constituted and limited by rules of change.
- Being obliged by threat is not having an obligation.

HART AGAINST KELSEN
- An ultimate criterion of validity is needed - Hart agrees.
- But it is a SOCIAL FACT, not a presupposed norm.
- It exists in the convergent practice of officials.

INDIA - ILLUSTRATION ONLY
- A supreme written Constitution with an amendment procedure.
- A judicial hierarchy with writ jurisdiction.
- Competence-distributed, rule-governed authority.
- Never call any Indian institution 'the sovereign'.

MECHANISM / VERDICT — **The internal point of view treats a rule as a REASON for conduct and a ground for criticising deviation; Austin's habit records only external regularity.**

ANSWER-GRABBING LINE — **Dworkin's hard-cases objection is named and routed to Individual and State; the dispute is live, and stating it as live is itself a mark of control.**

11

STAGE 11 LASKI I - THE STATE AS ONE ASSOCIATION AMONG MANY

ONE ASSOCIATION AMONG MANY
REAL LOYALTY
NOT PERMISSIONS
PLURALIST, NOT ANARCHIST
FIGGIS / COLE / MacIVER

FAMILY | CHURCH | UNION | GUILD | COOPERATIVE | PROFESSION | LOCALITY -> each commands real loyalty

WHAT PLURALISM DENIES
- That the state is the sole and morally unlimited source of authority.
- That associations are mere permissions granted by sovereignty.
- That all obligation can be derived from one will.

WHAT PLURALISM DOES NOT DENY
- That a central public authority is needed.
- That the state has coordinating and coercive capacities.
- That associations differ in function and importance.

FIGGIS
- Real associations expose the danger of an absolute state.
- Especially where it is allied with economic concentration.
- Use as the group-personality and anti-absorption precursor.

COLE
- A forerunner associated with functional and guild representation.
- Socially organised group life as the unit of politics.
- Boundary: do not turn the answer into guild socialism.

MacIVER
- Law and constitution, not a mysterious sovereign will, ground public force.
- The state coordinates associations without creating all their purposes.
- The strongest sociological supplement and the residual coordination role.

MECHANISM / VERDICT — **The order of the argument earns the marks: plural obligation is first a FACT about how societies work, and only then a reason to fear monism.**

ANSWER-GRABBING LINE — **Early Laski attacked sovereignty as a legal fiction; the mature Laski conceded its importance while denying omnipotence - so 'Laski abolishes sovereignty' is as wrong as 'Laski accepts Austin'.**

12

STAGE 12 LASKI II - THREE GROUNDS OF THREE KINDS, AND THE COORDINATION DEBT

PHILOSOPHICALLY FALSE
POLITICALLY DANGEROUS
SOCIOLOGICALLY UNREALISTIC
EARNED ALLEGIANCE
NOT DECENTRALISATION

THE STRUCTURAL POINT -> three logically INDEPENDENT grounds; answering one leaves the other two standing

PHILOSOPHICALLY FALSE
- No human institution is entitled to unlimited moral obedience.
- Obligation arises wherever purposes are pursued in common.
- So monism is mistaken about the SOURCE of obligation.

POLITICALLY DANGEROUS
- Absolute sovereignty legitimises tyranny and suppresses liberty.
- Dissent, minority rights, local autonomy and conscience are overridden.
- Pluralism is a doctrine of LIBERTY as much as of sociology.

SOCIOLOGICALLY UNREALISTIC
- Real societies distribute power among many groups.
- Modern society is functionally differentiated.
- One centralised will cannot govern economic, cultural and local life.

THE POSITIVE PROPOSAL
- Authority divided and shared through institutions and autonomy.
- The state must COMPETE FOR ALLEGIANCE by what it does.
- Authority is functional and moral, not mystical.

OBJECTION AND REPLY
- Objection: without a final sovereign, conflict is insoluble.
- Reply: legal finality suppresses diversity rather than ending conflict.
- Modern orders need a final PROCEDURE, not an unanswerable WILL.

THE UNPAID DEBT
- Emergencies, defence and redistribution need an integrating authority.
- MacIver's residual coordination role concedes exactly this.
- Name the debt; it is what makes the verdict look adjudicated.

MECHANISM / VERDICT — **The critique is double: monism MISDESCRIBES society and LICENSES domination - an empirical failure and a normative danger in one argument.**

ANSWER-GRABBING LINE — **Laski's corrective against absolutism is indispensable, yet a polity that can never speak with one voice cannot discharge the coordinating task that made sovereignty necessary.**

13

STAGE 13 KAUTILYA I - THE SEVEN-LIMBED STATE AND CALIBRATED COERCION

SAPTANGA
SVAMI
DANDANITI
DUTY-BEARING OFFICE
SYSTEMIC, NOT PERSONAL

THE ORGANISM -> the ruler is the HEAD, not the whole substance of sovereignty

SVAMI
The ruler: headship, direction and decision.

AMATYA
Ministers and officials: counsel, administration, execution.

JANAPADA
Territory together with its people: the productive social base.

DURGA
Fortified capital and defence: security and protection.

KOSA
Treasury: the material basis of rule.

DANDA
Coercive force and army: enforcement, punishment, defence.

MITRA
Ally: external support in the interstate order.

CALIBRATED COERCION
- No danda: society falls into disorder.
- Excessive danda: the ruler breeds resentment and instability.
- Danda is the force; niti is the policy governing its use.
- Coercion is CONSTITUTIVE of rule, never an emergency supplement.

THE RULER, EXACTLY
- Highest place, but not Austinian unlimitedness.
- Governs through counsel, prudence, discipline and regard for subjects.
- A ruler without treasury or ministers holds title, not sovereignty.

THE COMPARISON THAT PAYS
- Austin seeks the LEGAL SOURCE OF COMMAND: the form of authority.
- Kautilya explains the OPERATIONAL ANATOMY OF RULE: its function.
- They answer different questions - and saying so is the mark.

MECHANISM / VERDICT — **Because effective authority depends on six other limbs, the ruler's will is a necessary but insufficient condition of sovereignty - a question Austin never asks.**

ANSWER-GRABBING LINE — **The checks are prudential, not enforceable: misrule weakens sovereignty itself, but no limb may remove a ruler who ignores its counsel.**

14

STAGE 14 KAUTILYA II - CIRCLE OF STATES, SIX-FOLD POLICY, WELFARE AND RELEVANCE

MANDALA
SADGUNYA
YOGAKSEMA
PRAJA-SUKHA
SELECTIVE APPROPRIATION
PROMPT WORDING, NOT QUOTATION

ALIGNMENT IS POSITIONAL, NOT PERSONAL -> a change of relative power changes position, and position fixes the prudent measure

SANDHI
Making peace or treaty.

VIGRAHA
Hostility or war.

YANA
Marching, preparation, expedition.

ASANA
Staying quiet, remaining poised.

SAMSRAYA
Seeking shelter or alliance.

DVAIDHIBHAVA
Dual policy or combination strategy.

2025 PROVENANCE CONTROL
- The paper prints: 'There is no permanent friend or permanent enemy.'
- That wording is not verified in the checked Arthasastra sources.
- Treat it as the examiner's framing, never as a Kautilya quotation.
- Answer through the verified mandala and sadgunya doctrines.

SECURITY AND WELFARE
- The ruler's welfare is tied to the welfare of the people.
- Durability depends on prosperity, security and just administration.
- Treasury and territory are CONDITIONS of rule, not mere extraction.
- This moves Kautilya beyond pure force theory.

APPLICABILITY TO DEMOCRACY
- NOT transferable: the monarchical form.
- Transferable: institutional interdependence, proportionate force,
- treasury discipline, strategic diplomacy, welfare-centred governance.
- Relevance is shown through THEMES, never by transposition.

MECHANISM / VERDICT — **External flexibility is not amorality: the six measures operate alongside the internal duty to order and welfare, so realism here is bounded rather than normless.**

ANSWER-GRABBING LINE — **Prudential statecraft is not consent-based legitimacy - welfare is a condition of durable rule, not a right held by subjects, and the answer must say so.**

15

STAGE 15 GLOBALISATION - FOUR MECHANISMS, FOUR DIFFERENT CONSEQUENCES

RECONFIGURED, NOT ABOLISHED
TREATY
DELEGATION
POOLING
CONDITIONALITY

THE THESIS -> pooled, negotiated and networked sovereignty, not the disappearance of sovereignty

MECHANISM	WHAT HAPPENS	SOVEREIGNTY CONSEQUENCE
TREATY COMMITMENT	a state accepts binding rules through its own recognised treaty-making capacity	self-limitation; constrains future action without creating a global Austinian sovereign
DELEGATION	an institution is authorised to perform a defined adjudicative or monitoring function	the exercise moves outward while the legal source and limits stay treaty-based
POOLING	a competence is exercised jointly under common voting or bargaining rules	finality becomes shared for the agreed field, not universally transferred
MATERIAL DEPENDENCE	finance, markets, technology or security asymmetry narrows feasible choices	legal independence may survive while effective autonomy declines

THE FOUR THINKERS REDEPLOYED
- Bodin: external pressure does not remove the need for internal finality.
- Austin: globalisation complicates the uncommanded superior.
- Laski: interdependence strengthens the critique of absolutism.
- Kautilya: the strategic-relational reading remains serviceable.

THE SUPRANATIONAL CAUTION
- Not every international organisation is supranational.
- No supranational institution is automatically sovereign for Austin.
- Ask: which competence, by what instrument, with what exit rule?

THE CONCESSION TO MAKE
- Where dependence is severe, formal consent may be substantively unequal.
- Legal independence survives; effective autonomy does not.
- Concede this case; it is where the judgement marks sit.

MECHANISM / VERDICT — **Constraint is not extinction: the question is the degree and form of autonomy, not a mythical absence of all constraint.**

ANSWER-GRABBING LINE — **Sovereignty is illimitable in legal form, limited in political fact and negotiated in international practice - so the stem is answerable only as a matter of degree.**

16

STAGE 16 SYNTHESIS - THE MASTER GRID, THE FOUR QUESTIONS AND THE GRADED VERDICTS

FIX THE AXES
WHO / WHAT MAKES VALID / NO SINGLE ANSWER / WHAT FOR
DO NOT MERGE THE THREE
GRADED VERDICT

READ DOWN FOR A THINKER, ACROSS FOR A DEBATE -> comparison by fixed axes, never by biography or chronology

ISSUE	BODIN	AUSTIN	LASKI	KAUTILYA
WHERE LOCATED	the commonwealth's supreme law-giving authority	a determinate human superior	no single unlimited locus; authority is socially plural	the ruler as head within a seven-limbed state
IS IT ABSOLUTE?	yes against positive law, with higher-law limits	yes in the strict legal sense; formally unlimited	no; it is false and dangerous	strong but conditioned by dharma, welfare, prudence
INDIVISIBLE?	yes	yes	no; power is shared and distributed	organically coordinated, not simply indivisible
ASSOCIATIONS	secondary to sovereign unity	subordinate to sovereign command	real autonomy and loyalty	institutions and allies are constitutive limbs
MAIN ANXIETY	civil war and disorder	juristic clarity	liberty against absolutism	survival, order, prosperity, strategy
MAIN WEAKNESS	weak guard against concentration	unrealistic for democracy, federalism, custom, international law	understates the coordinating role of the state	monarchical frame; elastic realism

FOUR QUESTIONS, NOT FOUR ANSWERS
- Bodin and Austin ask WHO is sovereign.
- Kelsen and Hart ask WHAT MAKES A NORM VALID.
- Laski denies that any single answer is possible.
- Kautilya asks what the holder of authority is FOR.

CONVERGENCE WITH DIVERGENCE
- All three dissolve the PERSONAL absolute sovereign.
- Kelsen replaces him with a norm-hierarchy.
- Hart with an accepted official practice.
- Laski with a plurality of associations. Do not merge them.

THE ANSWER SPINE
- 1 fix the axis; 2 state the doctrine in its own vocabulary;
- 3 run one comparison on shared axes; 4 work one objection,
- reply and residual; 5 close with a graded verdict.
- 20 marks: internal critique first, external critique second.

MECHANISM / VERDICT — **The modern debate is better framed as HOW sovereignty is structured and limited, not simply whether it exists - which is what converts a summary into philosophy.**

ANSWER-GRABBING LINE — **The concept of a supreme legal authority survives every criticism examined; the image of a determinate personal sovereign does not.**

A

STAGE A OPTIONAL ADVANCED DEPTH - ENRICHMENT ONLY, NOT REQUIRED FOR A CORE ANSWER

CONSTITUENT vs CONSTITUTED POWER
MONIST vs LEGAL PLURALISM
SOVEREIGNTY UNDER INTERDEPENDENCE
EXCEPTION AND EMERGENCY

SUBORDINATE STAGE -> use for ONE added debate, ONE sharper objection or ONE controlled comparison in a 15- or 20-marker

THE FOUR OPTIONAL DEBATES
- Constituent power (the people who found the order) against constituted power.
- Austin/Bodin finality of command against pluralist or constitutional dispersal.
- 'Globalisation weakens sovereignty' against 'sovereignty changes form'.
- Decision in crisis against norm-governed emergency power.

THE STRONGEST UPGRADE
- Objection: dispersed sovereignty cannot say who finally decides in crisis.
- Reply: distinguish coordination authority from unlimited moral supremacy.
- Modern constitutional orders need a final PROCEDURE, not an unanswerable will.
- This converts the coordination debt from a concession into an argument.

RISKS AND PROMOTION TRIGGER
- Do not let Schmitt, constituent power or global governance crowd out the four names.
- Do not confuse state capacity with philosophical sovereignty.
- Promote only if a PYQ asks constituent power, legal pluralism,
- emergency sovereignty, or whether sovereignty is obsolete.

MECHANISM / VERDICT — **The Basic rail above is answer-complete for all eleven owned parts; this stage is visually subordinate because nothing in it is a prerequisite.**

ANSWER-GRABBING LINE — **Source trail: Bodin; Austin; Laski; Kautilya; Hart, The Concept of Law; Neil MacCormick, Questioning Sovereignty - by author and title only.**

Sources: Bodin, Six Books of the Commonwealth | Austin, The Province of Jurisprudence Determined | Laski, A Grammar of Politics and Studies in the Problem of Sovereignty | Kautilya, Arthasastra (Shamasastry / Kangle) | Kelsen, General Theory of Law and State, first English edition 1945 | Hart, The Concept of Law, 1961 | Kesavananda Bharati, Supreme Court judgment, 1973.